

26STCV01803 26STCV01803

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BACKGROUND

This case is a vehicular collision matter.

Plaintiff Jong Hee Kim alleges that Defendant Oscar Sandoval Ulloa negligently crashed into Plaintiff while driving for Lyft, Inc. Plaintiff also alleges that he was involved in a second motor vehicle collision caused by Defendants Humberto Rolando Ostorga, Dmytro Sydorov, and Sezai Cengiz.

On April 6, 2026, Plaintiff filed a first amended complaint ("FAC") against Defendants Lyft, Inc., Oscar Sandoval Ulloa, Humberto Rolando Ostorga, Dmytro Sydorov, Sezai Cengiz, and Dimarista Corp. The complaint alleges seven causes of action from the facts alleged above.

On April 15, 2026, Defendant Oscar Sandoval Ulloa filed a Motion to Strike Portions of Plaintiff's FAC ("Motion").

On July 6, 2026, Plaintiff filed an opposition.

On July 9, 2026, Defendant filed a reply.

TENTATIVE RULING

Defendant's Motion to Strike is DENIED.

LEGAL STANDARD

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(2).)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.)

DISCUSSION

I.

Meet
and Confer

Before filing a motion to strike, the demurring party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Pro. § 435.5, subd. (a).) The demurring party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 435.5, subd. (a)(3).)

“A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Code Civ. Pro. § 435.5, subd. (a)(4).)

Here, the parties discussed the motion to strike via email. (See Portillo Decl., Exh. A.) Thus, the meet and confer requirement has not been satisfied. (See Code Civ. Pro. § 435.5, subd. (a).) Despite this, the Court will consider the merits of Defendant's Motion. (See Code Civ. Pro. § 435.5, subd. (a)(4).)

II.

Motion
to Strike

The Court will not strike any portions of Plaintiff's FAC or the corresponding request for punitive damages.

To succeed on a motion to strike punitive damages, it must be said as a matter of law that the alleged behavior was so vile, base, or contemptible that it would be looked down upon and despised by ordinary decent people. (See *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1228-29.) Civil Code section 3294 provides that punitive damages are available in non-contract actions where defendant is guilty of malice, oppression, or fraud, defined as follows:

1. "Malice" means

conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

2. "Oppression" means

despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

3. "Fraud" means an

intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c).)

Here, Defendant seeks to strike any allegations of Defendant's drunk driving (i.e., FAC, ¶¶ 61-63, Prayer ¶ 5). Defendant seeks to strike these allegations because Plaintiff does not "allege specific facts to support that Defendant was aware of the probable consequences of his conduct." (Motion, p. 6:11-12.)

However, Plaintiff's allegations that Defendant consciously disregarded the rights and safety of others by driving drunk is sufficient at this stage to support a request for punitive damages. (See *Taylor v. Superior Court* (1979) 24 Cal.3d 854, 897 ["One who willfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others."]; FAC, ¶ 14 ["in willful and conscious disregard of the safety of others"]; ¶ 16 ["willfully and deliberately operated his vehicle in

conscious disregard of the safety of Plaintiff Jong Hee Kim”]; ¶ 24 [“Defendant Lyft’s officers, directors, and/or managing agents consciously disregarded the probable dangerous consequences of allowing an alcohol-impaired and/or alcohol-history driver with disqualifying or material DMV issues to continue driving passengers for compensation.”]; ¶ 61 [“The conduct of Defendant Oscar Sandoval Ulloa was despicable and was carried on with a willful and conscious disregard of the rights and safety of others, including Plaintiff.”]; ¶ 62 [“Defendant Oscar Sandoval Ulloa’s conduct after the first collision further evidences malice, oppression, and conscious disregard.”].) Whether Defendant was aware of the probable consequences of his alleged conduct is an issue that Plaintiff can only establish through discovery. Further, even assuming arguendo that the allegations regarding Defendant’s drunk driving cannot by themselves support a finding of conscious disregard, Plaintiff also alleges that Defendant attempted to flee the scene with passengers in his car, drove up onto a sidewalk, crashed into a telephone pole, and caused the vehicle to ignite. (See FAC, ¶¶ 18, 62.) This conduct, taken together with the allegations that Defendant was drunk during this time, is sufficient at this stage of the proceedings to proceed with an allegation of conscious disregard for the safety and rights of others.

Accordingly, the Court
will deny the motion.

CONCLUSION

For the foregoing
reasons, Defendant’s Motion to Strike is DENIED